

Present:

Mr. Justice A.K.M. Asaduzzaman

Civil Revision No. 2874 of 2010

Md. Danes Ali Khandker being dead his
heirs i) Khondaker Sadakul and others

.....Petitioners.

-Versus-

Md. Abul Jobbar Khondker and others

.....Opposite parties.

Mr. Md. Abdullah Al Mamun, Advocate

.....For the petitioners.

None appears.

..... For the opposite parties.

Heard and judgment on 3rd December, 2023.

A.K.M.Asaduzzaman,J.

This rule was issued calling upon the opposite parties to show cause as to why the impugned judgment and decree dated 03.05.2010 passed by the Joint District Judge, 3rd Court, Naogaon in Title Appeal No. 24 of 2006 affirming those dated 27.11.2005

passed by the Assistant Judge, 3rd Court, Naogaon in Other Class Suit No.49 of 1997 decreeing the suit should not be set aside.

Fact relevant for disposal of this rule are that the opposite party No.1 as plaintiff filed Other Class Suit No. 49 of 1997 before the Court of Assistant Judge, 3rd Court, Naogaon against the present petitioner and others for declaration that the deed No. 1551 dated 13.02.1980 obtained by the defendant No.1 from Anmon Bewa is null, void, collusive and not binding upon the plaintiff.

Plaint case in short, inter alia, is that the suit property was belonged to Anmon Bewa, who is the mother of the plaintiff and defendant, she was illiterate pordanshin woman. Anmon Bewa died leaving behind at the age of 95. After her death on 02.06.1996 when there was a shalish, the defendant No.1 disclosed that by way of Heba-bil-ewaj deed Anmon Bewa transferred the suit property to him on 13.02.1980. Accordingly the plaintiffs seen the Anmon Bewa used to reside before her death in the house of defendant No.1. Defendant created this forged documents. Anmon Bewa intend to transfer 18 decimals of land in favour of Hatshauli Jame Mosque and accordingly she

went to the Patnitola Sub Registrars Office to execute a Waqf deed in favour of the mosque, taking that advantage defendant created this forged document by way of creating a heba-bil-ewaj deed, he got the suit land in his favour. The doner had no independent advice and it was not read over to her and accordingly this document was collusive, null, void and not binding upon the plaintiffs.

Defendant petitioner contested the suit by filing written statement denying the plaint case alleging, inter alia, that suit property of R.S. khatian No.16 was belonged to Anmon Bewa, the mother of the plaintiff and defendant No.1, who before her death at the old age used to reside in the house of petitioner and being satisfied with his caring and affection and she desire to execute and transfer the suit land in favour of the defendant No.1 and as such when she went to registrar office to execute a deed of waqf in favour of Hatshaoly Jame Mosque, she also transferred the suit land in favour of the defendant by way of registered deed of heba-bil-ewaj on 13.02.1980 and handed over the possession to him. The suit is false and is liable to be dismissed with cost.

By the judgment and decree dated 14.07.1999, the suit was dismissed on contest by the Senior Assistant Judge, 3rd Court, Naogaon.

Challenging the said judgment and decree plaintiff preferred Title Appeal No. 118 of 1999 before the Court of District Judge, Naogaon, which was heard on transfer by the Additional District Judge, 2nd Court, Naogaon.

By the judgment and decree dated 18.06.2002, the said appeal was allowed and the suit was sent back on remand to the trial court thereafter matter was heard by the Assistant Judge, 3rd Court, Naogaon, who by the impugned judgment and decree dated 27.11.2005 decreed the suit on contest.

Challenging the said judgment and decree, defendant petitioner preferred Title Appeal No. 24 of 2006 before the Court of District Judge, Naogaon, which was heard on transfer by the Joint District Judge, 3rd Court, Naogaon, who by the impugned judgment and decree dated 03.05.2010 dismissed the appeal and affirmed the judgment of the trial court.

Challenging the said judgment and decree, petitioner obtained the instant rule.

Mr. Md. Abdullah Al Mamun, the learned advocate appearing for the petitioner drawing my attention to the judgment of the appellate court submits that although the appellate court being the last court of fact rightly found that the impugned deed was properly and validly been executed by the executant but making out a 3rd case dismissed the appeal as well as affirmed the decree of the trial court holding that the consideration of the deed i.e. transfer of the Holly Quran not been proved by adducing any evidence. But when admittedly the executant stay in the house of the defendant since last few years before her death and that transaction was made within the mother and son, the transfer of the consideration money i.e. the Holly Quran is immaterial. However if it is found that consideration money was not been made properly, and the deed cannot be taken as heba-bil-ewaj deed but it cannot be denied that the registered deed is a deed of heba, when court found that it was rightly been executed and registered. The findings of the appellate court is not sustainable in law and the suit may be dismissed. In support of his contention, he

cited a decision in the case of Miaruddin Bhuiyan alias Chand Mia and another Vs. Saleh Meher Bibi and others reported in 11 DLR 445.

Although the rule was issued and the notice appears to be served upon the plaintiff opposite parties and the matter is posted in the list for several days but no one is found to appear to contest the rule.

Heard the learned Advocate and perused the Lower Court Record and the impugned judgment.

This is a suit for declaration that the registered deed of heba-bil-ewaj in favour of the defendant No.1 is null and void and not binding upon the plaintiffs. According to the plaintiff, property belonged to Anmon Bewa, who is the mother of the plaintiff and defendant, intend to transfer .18 decimals of land by way of Waqf deed in favour of Hatshaoly Jame Mosque and accordingly went to Patnitola Sub Registrar Office at the time defendant No.1 created this document collusively beyond the knowledge of the executants, thus this document is null and void. On the other hand, defendants petitioner claim that since some few

years before the death of Anmon Bewa, she used to reside in the house of defendant, taking into consideration his caring and affection, his mother Anmon Bewa intend to make a gift of the suit land in his favour and accordingly she transferred the property to him and subsequently when she went to Patnitala Sub Registrar Office to execute and register a waqf deed to the Hatshaoly Jame Mosque, .18 decimals of land, she also make a deed of heba-bil-ewaj in favour of the defendant No.1 well within the knowledge of everyone, after handing over the possession to him.

Record speaks that initially that suit was dismissed on contest by the Senior Assistant Judge on 14.07.1999. In said judgment, the learned Assistant Judge found that the plaintiff failed to prove his date of knowledge about the said deeds and as such filing of the case appears to be barred by limitation. Trial Judge further observed that plaintiff also failed to prove that by practicing fraud upon the executants, defendant created this collusive deed in as much as after the execution of the said deed the executant Anmon Bewa survived about 8 years and she did never raised any objection of the deed, consequently a presumption can be drawn that the deed was executed with the

knowledge and intention of the executant Anmon Bewa. But in the appeal against thereof, without at all reversing the said findings of the trial court appellate court send back the suit on remand on the point that defendants since did not produce the original deed of heba-bil-ewaj deed, which needs to be proved legally in court. After receiving the suit on remand, the trial court without noticing all the scenario of this case, decreed the suit upon holding that defendant since could not produce any evidence that there was an independent advice before the registration of the deed in question as well as no valid ewaj was ever been transferred before the deed and accordingly this document was collusive one. In appeal there against, the appellate court although held that after analyzing the deposition of D.W.4 deed writer of the sub registry office, who is the witness of the deed held that the deed was legally and validly been executed and registered but in the absence of consideration of the deed of heba-bil-ewaj, it is found to be a mere paper transaction without having any consideration, and thereby defendant did not acquire any right, title over the suit land.

In the judgment cited here by the learned advocate for the petitioner in the case of Miaruddin Bhuiyan alias Chand Mia @ another Vs. Saleh Meher Bibi and others reported in 11 DLR445, it was observed and held that:

"5. As to the first point, it has been held by their Lordships of the Privy Council in the case of Ismail Mussajee Mookerdum v. Hafiz Boo (1) as follows:

“Notwithstanding that a transaction was purported to be a sale and a price was mentioned in the conveyance, it was held on the evidence to be a gift and not a sale – the question being regarded as purely one of intention.”

In that case, Sir Arthur Wilson observed at page 580 as follows:-

“The fact that the sum of Rs.10,000 is mentioned as the price, a sum which, according to the evidence, was far short

of the actual value of the property, and the fact that the sum is stated to have been paid in advance whereas in fact it was not paid at all, are strong to show that the transaction was not a sale but a gift, with an imaginary consideration inserted, in a manner common in such transactions in India.”

Similarly, in a later case of *Musammat Hanif-un-nisa and anr. v. Chaudhurn Musammat Faizunnisa*(2), their Lordships of the Privy Council reversed the decision of the Allahabad High Court which held that the defendant was precluded by the provisions of section 92 of the Indian Evidence Act from giving parol evidence for the purpose of showing that the aforesaid deed of sale was in reality intended by the executant to be a deed of gift. So it is quite clear that even if the document is not valid as a *hiba-bil-iwaz* the Court can consider whether it can be treated as a simple gift having regard to the

intention of the donor. In the present case, there is no doubt that there is such an intention on the part of the donor, the husband, to make the gift of the property to his wife, the donee. In the case of *Mst. Sarder Khatun v. Secretary of State & ors. (3)*, Tyabji, J., who delivered the judgment, sitting in the Division Bench, held as follows:-

“Whenever a transaction is relied upon as being hiba-bil-iwaz, it certainly included the allegation that it is a hiba valid according to the Mohamedan Law.”

Therefore, there is no doubt that if a document cannot be sustained as hiba-bil-iwaz for want of consideration, it can be treated as a simple hiba if the intention of the donor and the necessary elements of a valid hiba are present there."

Admittedly in the instant case property was shown to be transferred in favour of the defendant No.1, who is the son of

Anmon Bewa, the mother of the plaintiff, so the transaction was between the mother and son. Where handing over the Holy Quran to the mother is not been proved by any evidence, the transaction if not been considered as heba-bil-ewaj but taking into consideration of the above noted case and decision cited there it can also be held that if a document cannot be sustained as heba-bil-ewaj for want of consideration, it can be treated as a simple heba if the intention of the donor and the necessary elements of a valid heba are present there. It is of no doubt that before death, after the execution of the deed in question, the executant mother Anmon Bewa survived about 8 years as noticed above and she did never raised any objection against the deed in question by herself and the appellate court being the last court of fact upon considering the deposition of D.W.4 Kazi Abdul Aziz, the witness of the deed writer of the Sub Registry Office produced in court, as a witness of the deed and found that deed was legally and validly been registered, a question of creating the document collusively by the defendant not been proved by any means rather it can be said that it has got no substance in the eye of law. When the defendants also by adducing oral testimonies has succeed to

prove their possession in the suit land and there is no other evidence to show that defendant could not get possession over the suit land, pursuant to the deed in question and no question has been raised that deed of heba was not been made properly by compliance of all legal formalities, it is a valid deed of gift/heba.

Giving my anxious thought to the above findings in this case, I am constrained to hold the view that both the court below totally failed to appreciate the true scenario of this case as well as evidences adduced in this case and decreed the suit without applying their judicial mind. Decree of the court below thus are not sustainable in law, which are liable to be set aside.

I thus find merit in this rule.

In the result, the Rule is made absolute and the impugned judgment and decree passed by the court below is hereby set aside and the suit is dismissed.

The order of status-quo granted earlier is hereby recalled and vacated.

Send down the L.C.R along with the judgment to the court below at once.